

Faiju Uddin v. Purvanchal Vidyut Vitran Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 20 November 2023 · 2023:AHC:219429-DB · WRIT - C No. 39728 of 2023 · **Pending Clause 6.5 objection to be decided within three months.**

HEADNOTE

Writ disposed without any opinion on the bill for 2 November 2022 to 4 December 2022 or on maintainability of the Clause 6.5 objection. The Executive Engineer, EUDD, Karelabagh, was directed to decide that pending objection and act strictly in accordance with law, preferably within three months of the certified copy.

FACTUAL SUMMARY

Faiju Uddin filed a writ against Purvanchal Vidyut Vitran Nigam Limited. His grievance was that the Executive Engineer, EUDD, Karelabagh, Allahabad, had not decided the objection he had filed under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against the electricity bill for 2 November 2022 to 4 December 2022. He asked that the objection be decided. Counsel for respondent no. 2 was heard. No precedent was cited.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending objection under clause 6.5

HOLDING

Where an objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 against a bill remains undecided, the writ may be disposed of by directing the Executive Engineer to decide that objection and take appropriate action strictly in accordance with law, without any opinion on the merits of the claim or on maintainability of the objection, preferably within three months of receipt of the certified copy. ¶ 2-3

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The Executive Engineer had not decided the petitioner's Clause 6.5 objection to the bill for 2 November 2022 to 4 December 2022. The Court directed him to decide it and act strictly in accordance with law, preferably within three months of the certified copy. ¶ 2-3

6.5-pending-complaint-writ-remitted The writ was disposed of without a finding on the bill or on whether the objection was maintainable under Clause 6.5, and the pending objection was left to the Executive Engineer. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CLAIM AGAINST THE BILL FOR 2 NOVEMBER 2022 TO 4 DECEMBER 2022

The Court declined to express any opinion on the merits. ¶ 3

NOT DECIDED — MAINTAINABILITY OF THE OBJECTION UNDER CLAUSE 6.5 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Left open; the Executive Engineer is to proceed strictly in accordance with law. ¶ 3

